

RURAL DISTRICT COUNCILS ACT (CHAPTER 29:13) – SUMMARY

This document provides a concise and structured summary of the Rural District Councils Act of Zimbabwe. The Act establishes rural district councils, defines their powers and duties, regulates their governance, and provides financial and administrative frameworks for local government in rural areas.

PART I – PRELIMINARY

The Act defines key terms such as council, councillor, ward, district, levy, rate, urban land, communal land, resettlement land, and commercial land. The Minister has authority to classify land categories and declare specified areas. The President may declare districts and alter their boundaries after consultation.

PART II – DISTRICTS

The President may declare, name, alter, or abolish districts by statutory instrument. Before doing so, consultation must occur through a commission or public notice. Residents may submit objections, and the President must consider these before making a final decision.

PART III – ESTABLISHMENT AND MEMBERSHIP OF COUNCILS

The President may establish rural district councils and divide council areas into wards. Each council consists of elected councillors (one per ward) and appointed councillors (not exceeding one-quarter of elected members). Councils are corporate bodies with perpetual succession and legal capacity to sue and be sued.

PART IV & V – COUNCILLORS

Elected councillors assume office after election and serve until the next election. Appointed councillors are selected by the Minister and may be subject to conditions. Casual vacancies arise through resignation, death, disqualification, or prolonged absence. Councillors must take an oath before performing duties.

PART VI – ELECTIONS

Elections are conducted in accordance with the Electoral Act. Each ward elects one councillor. The Registrar-General supervises electoral processes. By-elections fill vacancies where necessary.

PART VII – PROCEEDINGS OF COUNCILS

Councils elect a chairman and vice-chairman. Meetings must be held at least once every three months. Quorum is one-third of councillors plus the chair. Decisions are by majority vote. Meetings are generally open to the public unless conducted in committee. Minutes must be recorded and submitted to the Minister.

Conflict of Interest

Councillors must disclose pecuniary interests in contracts and withdraw from related discussions. Failure to disclose constitutes an offence punishable by fine or imprisonment.

PART VIII – COMMITTEES

Mandatory and optional committees include Finance Committee, Area Committees, Town Boards, Roads Committees, Ward Development Committees, and Environmental Committees. Councils may delegate certain functions but cannot delegate core powers such as imposing levies or making by-laws without Ministerial authority.

PART IX – STAFF

Councils appoint a Chief Executive Officer and other staff. The Act regulates appointments, delegation of powers, and prohibits corrupt practices. Conditions of service must comply with applicable laws.

PART X – POWERS AND DUTIES

Councils have wide powers including development planning, sewerage and drainage, land use control, environmental management, road construction, estate development, income-generating projects, co-operative establishment, and compulsory acquisition of property. They may enter contracts and cooperate with other authorities.

PART XI – BY-LAWS

Councils may make by-laws for governance and service regulation. By-laws require Ministerial approval before taking effect. The Minister may impose model by-laws or make by-laws on behalf of councils where necessary.

PART XII – LEVIES AND RATES

Councils may impose development levies, land development levies, special levies, rates, and special rates. Charges must be notified publicly. Interest may be charged on unpaid amounts. Rates must be paid before transfer of property. Councils may recover unpaid amounts through legal action.

PART XIII – FINANCIAL PROVISIONS

Councils must maintain proper books of accounts and prepare annual estimates. They may borrow money, operate bank accounts, create reserve funds, and invest surplus funds. Auditors must be appointed to examine financial records. The Minister may conduct financial inquiries.

PART XIV – ALTERATION OR ABOLITION OF COUNCILS

The President may alter council boundaries or abolish councils after consultation. Property, assets, liabilities, and staff are redistributed appropriately. Councillors may continue temporarily where wards are altered.

PART XV – GENERAL PROVISIONS

The Act provides legal protections for councils and officials acting in good faith. The Minister has oversight powers including suspension of councillors, appointment of commissioners, directing corrective action, and conducting investigations. Regulations may be made to give effect to the Act.

SCHEDULES

The First Schedule lists detailed powers of councils. The Second Schedule outlines matters for which by-laws may be made. The Third Schedule sets scales for development levies.

CONCLUSION

The Rural District Councils Act establishes a comprehensive framework for rural local governance in Zimbabwe. It defines administrative structures, financial systems, development responsibilities, and Ministerial oversight, ensuring accountability and effective rural administration.